



CHAPTER lix.

An Act for incorporating and conferring powers on the Brentwood Gas Company. A.D. 1905.
—
[30th June 1905.]

WHEREAS the Brentwood Gas Coke and Light Company Limited (in this Act referred to as "the limited company") were in the year one thousand eight hundred and ninety-eight incorporated under the Companies Acts 1862 to 1890 for the purposes (amongst other things) of acquiring the undertaking of the Brentwood Gas and Coke Company and of making selling and supplying light in the parishes of Brentwood South Weald Great Warley Little Warley Shenfield and Hutton and the adjoining or neighbouring parishes:

And whereas the capital of the limited company is thirty-five thousand pounds divided into seven thousand shares of five pounds each the whole of which shares are fully called up and the said company have borrowed on mortgage of their undertaking and now owe the sum of ten thousand pounds:

And whereas the demand for gas in the parishes supplied by the limited company and in the neighbourhood thereof has increased and is increasing and it is expedient that the works and mains of the limited company be extended and improved and that additional capital be raised for such extension and improvement:

And whereas it is expedient that the limited company be dissolved and re-incorporated with further powers and be authorised to supply gas within the limits defined by this Act:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

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May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

Short title.

1. This Act may be cited as the Brentwood Gas Act 1905.

Incorporation of Acts.

2. — (1) The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (namely):—

(A) The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement):

(B) The Companies Clauses Acts 1845 to 1889 (except the provisions with respect to the conversion of borrowed money into capital and except Part IV. of the Companies Clauses Act 1863):

(C) The Gasworks Clauses Act 1847 (except sections 30 to 34 both included) Provided that section 13 of that Act shall be read as if the words "or any premises" were inserted after the words "private building" and that section 35 of that Act shall be read as if the words from "in case the whole" to "have been paid" were omitted therefrom and as if the expression "the prescribed rate" included the rate of dividend authorised by this Act or such rate as reduced or increased in accordance with the provisions of this Act together with any sum which under the provisions of this Act may be carried to the insurance fund:

(D) The Gasworks Clauses Act 1871.

(2) The provisions of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 incorporated with this Act shall apply as well to the pipes and works of the Company laid down or constructed before the passing of this Act as to any pipes or works which may be laid down or constructed under the authority of this Act.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And—

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Interpreta-
tion.

The expression "the Company" shall mean the Company incorporated by this Act ;

The expressions "the works" "the gasworks" and "the undertaking" shall respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be made or maintained by the Company and any improvement thereof which they may construct under the powers of this Act and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively.

4. The limits of this Act shall be the urban district of Brentwood the parishes of South Weald Doddinghurst Shenfield Hutton Ingrave so much of the parish of Mountnessing as lies on the south-westerly side of the north-easterly boundary of the road leading from Swallows Cross viâ St. Ann's Lane to Mountnessing Hall leaving Arnold's Farm to the north and so much of the parishes of Cranham Great Warley and Little Warley as lies north of the northern boundary fence of the Barking and Pitsea branch of the London Tilbury and Southend Railway all in the county of Essex Provided that the premises abutting on either side of the said road in the parish of Mountnessing shall be deemed to be within the limits of this Act.

Limits of
Act.

INCORPORATION OF COMPANY.

5. From and after the passing of this Act the limited company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and they are hereby united into a company for the purposes hereinafter mentioned and shall be and are hereby incorporated by the name of the Brentwood Gas Company and by that name shall be a body corporate with perpetual succession

Incorporation of Com-
pany.

A.D. 1905. — and a common seal with power to purchase take hold and dispose of lands and other property for the purposes of this Act or of their undertaking.

General purposes of Company.

6. The Company shall be established for the purposes of acquiring maintaining altering improving extending and enlarging the gasworks of the limited company and of manufacturing and supplying gas for lighting heating motive power and other purposes within the limits of this Act and the Company may provide produce sell dispose of and deal in gas coke tar pitch asphaltum ammoniacal liquor oil sulphate of ammonia chemicals and all other residual products resulting from the manufacture of gas and generally may carry on the business usually carried on by a gas company.

Present property of limited company vested in Company.

7. Subject to the provisions of this Act all the lands gasworks erections buildings interests rights and easements and other the undertaking which immediately before the passing of this Act were vested in the limited company or any person in trust for them or to which the limited company were in anywise entitled and all mains and pipes plant plugs lamps retorts gauges meters lamp-posts syphons apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of this Act or which immediately before the passing of this Act were the property of the limited company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the limited company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the limited company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the limited company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

Memorandum and articles of association of limited company to be void.

8. Subject to the provisions of this Act the memorandum and articles of association of the limited company shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions

restrictions and requirements of any Act which applied to the limited company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said memorandum and articles of association incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the limited company if this Act had not been passed.

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9. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the limited company or the members thereof as such shall be as valid as if the Company had not been incorporated and the said memorandum and articles of association had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said memorandum and articles of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and its shareholders and property shall to all intents and purposes represent the limited company and the members thereof as such and the property of the limited company (as the case may be) and the generality of this enactment shall not be restricted by any of the other provisions of this Act.

Nothing to
affect pre-
vious rights
and liabilities.

10. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the limited company or any trustees or persons acting on behalf of the limited company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the limited company or the trustees or persons acting on behalf of the limited company the Company had been a party thereto.

Contracts
prior to Act
to be binding.

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Actions &c.
not to abate.

11. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the limited company or any member thereof in relation to the affairs of the limited company or to which the limited company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the limited company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the limited company and its members respectively.

Trustees of
limited com-
pany to be
indemnified.

12. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the limited company were vested immediately before the passing of this Act and who (being authorised so to do) entered into any bond covenant contract or engagement in respect of the same or otherwise on behalf of the limited company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement.

Company to
satisfy
liabilities of
limited com-
pany.

13. From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the limited company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the limited company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Recovery of
gas rents &c.

14. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the limited company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

As to pay-
ment of
debts owing

15. All persons who immediately before the passing of this Act owed any money to the limited company or to any person

on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the limited company or for the payment of which the limited company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

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before passing of Act.

16. Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed for or with respect to any shares in the limited company shall remain in full force and continue and be available in all respects as if the said memorandum and articles of association had not been avoided.

Certificates &c. to remain in force.

17. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Books &c. continued evidence.

18. All officers and servants of the limited company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Officers to continue until removed.

19. The books kept by the limited company for entering the names and designations of the members thereof with the numbers of their shares shall until a register of stockholders shall be provided by the Company continue to be kept for the same purpose by the Company and be taken and considered as the register of holders of consolidated stock required to be kept by the Companies Clauses Consolidation Act 1845.

Present register of shareholders to be continued.

CAPITAL.

20.—(1) The capital of the Company shall be eighty thousand pounds divided as follows:—

Capital.

(A) Thirty-five thousand pounds of ordinary stock (in this Act called "the original capital") to be divided among the holders of shares in the limited company in manner hereinafter provided:

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(B) Forty-five thousand pounds (in this Act called "the additional capital") to be raised in manner herein-after provided.

(2) The Company may convert into stock the whole or any part of the additional capital when fully paid up.

Vesting of
original
capital in
present
shareholders.

21.—(1) The original capital shall be vested in the several persons who immediately before the passing of this Act were the registered members of the limited company five pounds of stock in such capital being substituted for each share of five pounds in the capital of the limited company.

(2) Upon the passing of this Act there shall be created by virtue of this Act sufficient ordinary stock to give effect to the provisions of this section.

(3) The stock vested by this section shall be subject to the same liability for calls and be subject and liable to the same trusts powers provisions declarations agreements charges liens and incumbrances as immediately before the passing of this Act affected the shares or share for which the same is substituted.

(4) The Company shall call in and cancel the existing certificates of shares in the limited company and shall issue in lieu thereof to every shareholder a new certificate for the amount of ordinary stock held by him but the holders of such existing certificates of shares shall not be entitled to any certificates of proprietorship under this Act until they shall have delivered up to the Company to be cancelled the certificates of proprietorship issued to them before the passing of this Act or shall have proved to the reasonable satisfaction of the Company the loss or destruction thereof.

(5) Every new certificate issued in pursuance of this section shall be issued free of charge.

(6) Subject to the provisions of this Act the provisions of the Companies Clauses Consolidation Act 1845 with respect to the consolidation of the shares into stock (except section 61 of that Act) shall extend and apply to the ordinary stock created by virtue of this section.

Multiples of
stock.

22.—(1) Any transfer of ordinary stock may be in multiples of one pound so long as by such transfer no holding of any stockholder of the Company is rendered less than ten pounds of stock.

(2) Notice of the effect of this section shall be stated in all stock certificates. A.D. 1905.

23. The Company may from time to time raise additional capital not exceeding in the whole forty-five thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than five pounds nor shall any such share or stock vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that the Company shall not create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of forty-five thousand pounds.

Power to
raise addi-
tional capi-
tal.

24.—(1) (A) Notwithstanding anything contained in this Act when any shares or stock created under the powers of this Act and forming part of the additional capital are or is to be issued the Company before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or ordinary stock of the Company are or is at a premium or not and before offering the same for sale by public auction or tender as hereinafter provided may (with the approval of the Board of Trade to be signified in writing under the hand of an assistant secretary of that Board) offer the same to all the consumers of gas supplied by and to the persons in the employment of the Company at as near as may be the average market price of similar shares or stock in the capital of the Company in the six months immediately preceding such offer. Provided that in no case shall the price at which such shares or stock shall be so offered be lower than five per centum below such market price.

New shares
or stock to
be offered to
consumers or
employees or
by auction or
tender.

(B) To ascertain the average market price of the shares or stock in the six months immediately preceding an offer to consumers and employees for the purpose of this subsection the mean price recorded in the Company's books shall be taken for the last six completed months and if no sales shall have taken place in such time then the period of two years shall be taken in lieu thereof.

(2) If and so far as the shares or stock so issued are or is not offered to consumers of gas or persons in the employment

A.D. 1905. of the Company in pursuance of subsection (1) of this section or are or is not accepted by such consumers or persons the Company before offering the same to the holders of any shares or stock in the Company shall offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided that at any such sale—

- (A) No single lot shall comprise more than one hundred pounds nominal value of shares or stock :
- (B) The reserve price put upon such shares or stock shall not be less than the nominal amount of such shares or stock :
- (C) Notice of the amount of such reserve price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner :
- (D) No priority of tender shall be allowed to any holder of shares or stock in the capital of the Company except that if any bid or offer by tender of any such holder be the same in amount as any bid or offer made by any other person the bid or offer of such holder may be accepted in preference and preference may in like manner be given to any employee of the Company or any consumer of gas supplied by the Company whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of shares or stock in the Company.

Purchase money of capital sold by auction to be paid within three months.

25. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Notice to be given as to sale of shares or stock.

26. The intention to sell any such shares or stock to consumers of gas or to employees of the Company or by auction or tender shall be communicated in writing to the clerk to the council of every district wholly or partly included in the limits of this Act and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of sale or the last day for the reception of tenders (as the case may be) and notice of such intention shall be duly advertised once in

each of two consecutive weeks in one or more local newspapers . A.D. 1905.
circulating within the said limits.

27.—(1) When any shares or stock created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserve price put upon the same for the purpose of sale by auction or tender or may be offered at such reserve price to the holders of preference or ordinary shares or stock of the Company in manner provided by and subject to the provisions of the Companies Clauses Act 1863 or to the employees of the Company or to the consumers of gas supplied by the Company or partly to one and partly to another or others.

Disposal of
shares or
stock not
sold by auc-
tion or by
tender.

(2) Any shares or stock not so disposed of or so offered and not accepted in the case of shares or stock offered to the holders of shares or stock within the time prescribed by the said Act or in the case of shares or stock offered to such employees or consumers within the time limited by the directors of the Company may again be offered for sale by public auction or by tender in the manner provided by and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act except that the reserve price put upon such shares or stock may upon such second sale if the directors of the Company think fit be less than the nominal amount thereof and any shares or stock not then sold may be disposed of by the directors or offered to the holders of preference or ordinary shares or stock or to such employees or consumers at not less than the last mentioned reserve price and so from time to time until the whole of such shares or stock are or is sold.

28.—(1) The Company may at any time after the passing of this Act borrow on mortgage of the undertaking in respect of the original capital any sum or sums not exceeding in the whole (inclusive of the sum of ten thousand pounds already borrowed by the limited company) twelve thousand pounds.

Power to
borrow.

(2) In addition to the money which the Company are authorised to borrow under the foregoing provisions of this section they may borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock forming part of the additional capital at the time issued together with the

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(3) Any sums which shall be received upon the issue of shares or stock by way of premium shall be deemed to be part of the additional capital of the Company for the purposes of this section.

Priority of
existing
mortgages.

29. All mortgages and rentcharges granted by the limited company before and subsisting at the passing of this Act shall during the continuance of such mortgages and rentcharges have priority over all mortgages and debenture stock granted or created and issued by virtue of this Act.

For appoint-
ment of a
receiver.

30.—(1) The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver.

(2) In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five hundred pounds in the whole.

Debenture
stock.

31.—(1) The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages.

(2) Notice of the effect of this section shall be endorsed on all mortgages and certificates of debenture stock.

32. All money to be raised by the Company on mortgage under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of their undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

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Priority of
mortgages
and debenture
stock
over other
debts.

33. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only to the purposes of this Act and to the general purposes of the Company being in all cases purposes to which capital is properly applicable.

Application
of moneys.

LIMITATION OF PROFITS.

34.—(1) The profits of the Company to be divided among the holders of such of the additional capital to be raised under the powers of this Act as shall be issued as preference capital shall not in any year exceed the rate of six pounds in respect of every one hundred pounds actually paid up of such capital.

Profits of
Company
limited.

(2) Except as by this Act provided the profits of the Company to be divided among the holders of ordinary capital shall not in any year exceed the following rates (which are in this Act referred to as "the standard rates of dividend") (that is to say):—

On the original capital the rate of ten pounds in respect of every one hundred pounds of such capital:

On such of the additional capital to be raised under the powers of this Act as shall be issued as ordinary capital the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital.

35. In case in any year the funds of the Company applicable to dividend shall be insufficient to pay the full amount of dividend at the authorised rate on each class of ordinary shares

Dividends on
different
classes of
ordinary

capital to be
paid propor-
tionately.

Insurance
fund.

or stock in the capital of the Company a proportionate reduction shall be made in the dividend of each class.

36. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) and the dividend on the ordinary capital at the authorised rates the excess beyond the sum necessary for that purpose may to the extent of one per centum per annum upon the paid up capital of the Company be invested in securities in which trustees are for the time being authorised by law to invest trust money and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accident strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen Provided that—

- (1) When and so often as the said fund shall reach one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend:
- (2) Resort may be had to the insurance fund to meet any extraordinary claim or demand as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid:
- (3) Any sums which shall be received upon the issue of shares or stock by way of premium shall be deemed to be part of the paid-up capital of the Company for the purposes of this section.

Application
of excess of
profits over
authorised
dividend.

37. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) and the dividend on the ordinary capital at the authorised rates the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of the undertaking for the next following year.

38. When in any year the dividend on the ordinary capital of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the limited company existing at the passing of this Act may be invested in securities in which trustees are for the time being authorised by law to invest trust money and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rates on the ordinary capital of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

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Reserve
fund.

MEETINGS DIRECTORS &c.

39. The first ordinary meeting of the Company shall be held within nine months after the passing of this Act and the subsequent ordinary meetings of the Company shall be held once in every year in the month of February or March or at such other time as shall be appointed for that purpose by an order of a general meeting.

Ordinary
meetings.

40. The number of directors shall be seven but the Company may vary the number provided that the number be not at any time more than seven or less than three.

Number of
directors.

41.—(1) For the period of one year after the passing of this Act the qualification of a director shall be the possession in his own right of not less than one hundred pounds in the ordinary capital of the Company and thereafter the qualification of a director shall be the possession in his own right of not less than two hundred pounds in the ordinary capital of the Company.

Qualification
of directors.

(2) No person shall be disqualified from becoming or continuing a director of the Company by reason of his or any partner of his being or becoming interested in any contract

A.D. 1905. with the Company as a member of any other company corporation local authority or partnership but no such person shall as a director vote in respect of any question as to any such contract.

(3) If any of the directors shall be made bankrupt or shall go to reside abroad or shall become lunatic or of unsound mind or shall neglect to attend a meeting of directors for three months (unless such neglect to attend be occasioned by illness or by any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant.

(4) The continuing directors may act notwithstanding any vacancy in the number of directors.

Quorum. **42.** The quorum of a meeting of directors shall be three. Provided that when the number of directors does not exceed three the quorum shall be two.

First directors. **43.** The directors of the limited company namely James Biggs George Paul Stephen Ray Joseph John Crowe Frank Landon Robert Green Rist and John William Larkin shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act.

Election of directors. **44.—**(1) At the first ordinary meeting held after the passing of this Act the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being if they continue qualified eligible for re-election.

(2) At the first ordinary [meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead.

(3) Provided that no person not being a director appointed by this Act or a retiring director shall be eligible to be elected

a director unless notice in writing be given to the secretary of the Company or left at the principal office of the Company ten days at least before the day of election that such person will be proposed to be elected a director and the secretary of the Company shall during such ten days and on the day of election fix a copy of every such notice in some conspicuous place in such office. A.D. 1905.
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45. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary of the Company. Power to directors to determine remuneration of secretary.

46. The quorum of all general meetings whether ordinary or extraordinary shall be five shareholders present in person and holding or representing by proxy not less in the aggregate than one-tenth part of the ordinary capital of the Company for the time being issued. Quorum for meetings of Company.

47.—(1) Except as hereinafter provided every holder of stock or shares in the capital of the Company shall be entitled to one vote for the first fifty pounds of stock or ten shares held by him or any part thereof respectively and a further vote for every complete fifty pounds of stock or ten shares held by him after the first fifty pounds of stock or ten shares. Scale of voting.

(2) No such holder shall be entitled to vote at any meeting in respect of any shares or stock that he has acquired by transfer unless he has been possessed of such shares or stock for at least three months previously to the time of holding the meeting.

(3) No person shall be entitled to vote in respect of any preference shares or stock unless it is otherwise expressly provided by the resolution creating such preference shares or stock.

48.—(1) The prescribed number of auditors shall be one unless the number be increased to two by an order of a general meeting. Provided that if the Company think fit a firm may be appointed auditors. Number and qualification of auditors.

(2) The auditors appointed by the Company shall be chartered accountants and it shall not be necessary for them to hold shares in the capital of the Company.

49. The directors may in any year without calling a meeting of shareholders for the purpose declare an interim half-yearly dividend out of the then ascertained profits of the Interim dividend.

A.D. 1905. Company Provided that the amount of any interim half-yearly dividend so declared shall not exceed in any half-year one half of the amount of the authorised dividend.

Closing of transfer books previous to declaring interim dividend.

50. The directors may close the register of transfers for a period not exceeding fourteen days previous to a declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the Company's principal place of business is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Books to be balanced to 31st Dec.

51. The period to which the books of the Company shall be balanced shall be the thirty-first day of December in each year.

Receipt in case of persons non sui juris.

52. If any money is payable to a shareholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

WORKS AND LANDS.

Powers as to construction and maintenance of gasworks.

53. Subject to the provisions of this Act the Company may maintain alter improve enlarge extend and renew or discontinue the existing gasworks upon the lands described in the schedule to this Act and may also upon those lands erect lay down provide maintain alter improve enlarge extend and renew or discontinue additional and other gasworks retorts purifiers gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of this Act and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar pitch asphaltum ammoniacal liquor oil sulphate of ammonia chemicals and all other products or residuum of any materials employed in or resulting from the manufacture of gas.

Power to lay pipes in streets not dedicated to public use.

54. The Company may upon the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down and repair

take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. A.D. 1905.

55. The Company may lay down and repair take up alter relay or renew mains pipes and culverts within the limits of this Act for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. Power to utilise pipes for ancillary purposes.

56. The Company may for the purposes of their undertaking purchase take on lease and hold (by agreement but not otherwise) in addition to the lands described in the schedule to this Act any lands and hereditaments not exceeding in the whole three acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Act. Power to purchase lands by agreement. Gas not to be manufactured except on lands scheduled.

57. The Company may sell or lease any lands vested in or acquired by them under the powers of this Act and not for the time being required for the purposes of their undertaking. Sale or lease of lands not required.

58. Notwithstanding anything in this Act contained the following provisions for the protection of the Great Eastern Railway Company (hereinafter called "the railway company") shall except so far as may be otherwise agreed in writing under the respective common seals of the Company and the railway company be in force and have effect and be binding on the Company :— For protection of Great Eastern Railway Company.

- (1) In laying down and executing or in effecting the repairs and renewals of any mains pipes or other works which

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the Company may be authorised to lay down and execute upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or used or occupied by the railway company or the bridges approaches viaducts stations or other works or any level crossings of or repairable or used by the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and only according to plans and sections to be submitted to and in such manner as shall previously be reasonably approved by him and in all things by and at the expense of the Company who shall also restore and make good the roads over any such bridges level crossings and approaches which the railway company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company and all such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of the traffic over such railways or at any station thereon and if any injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works under or near to any such bridge level crossing or other property the Company shall make compensation in respect thereof to the railway company the amount of such compensation to be recoverable from the Company by all and the same means as any simple contract debt is recoverable :

- (2) If any question shall arise under this section as to whether any works should reasonably satisfy the railway company or their principal engineer or as to whether their or his approval is unreasonably withheld or otherwise the same shall be determined by arbitration the arbitrator being appointed in default of agreement by the president of the Institution of Civil Engineers.

SUPPLY OF GAS.

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Sliding scale.

59. The standard prices to be charged by the Company for gas supplied by them within a radius of one and a half miles from their existing gasworks shall be four shillings per thousand cubic feet and for gas supplied beyond that radius four shillings and threepence per thousand cubic feet. Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary share capital or stock as follows:—

- (1) In respect of any year during any part of which the price charged by the Company within a radius of one and a half miles from their existing gasworks shall have been one penny or part of a penny above the standard price of four shillings or the price charged by the Company for gas supplied beyond that radius shall have been one penny or part of a penny above the standard price of four shillings and threepence the dividend payable by the Company shall in respect of each penny or part of a penny by which either of the standard prices shall have been increased be reduced below the standard rate of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum per annum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a seven per centum per annum standard rate of dividend and so in proportion for any fraction of one hundred pounds:
- (2) And in respect of any year during the whole of which the price charged by the Company within a radius of one and a half miles from their existing gasworks shall have been one penny or more below the standard price of four shillings and the price charged by the Company for gas supplied beyond that radius shall also have been one penny or more below the standard price of four shillings and threepence the dividend payable by the Company may in respect of each penny by which both the standard prices shall have been reduced be increased above the standard rate by five shillings on every one hundred pounds of ordinary

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paid-up capital with a ten per centum per annum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a seven per centum per annum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

Pressure of
gas.

60.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than eight-tenths of an inch and from sunset to midnight not less than one inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to testing of gas and to penalties shall mutatis mutandis apply to such testing of pressure and two hours' previous notice shall be given to the Company of the time and place at which such testing shall be conducted.

Quality of
gas.

61. The prescribed number of candles shall be fourteen.

Testing
place.

62.—(1) Within six months from the passing of this Act the Company shall provide a testing place at their works and such place shall be the prescribed place for the purposes of section 28 (Testing place) of the Gasworks Clauses Act 1871.

(2) (A) The Company shall also if and when required by the Brentwood Urban District Council provide a testing place at the expense of that council or that council may at their option and at their own expense themselves provide such testing place at such point near to Brentwood High Street as may be mutually agreed on between the Company and the said council and the Company shall also if and when required by the Billericay Rural District Council provide a testing place within the district and at the expense of that council or that council may at their option and at their own expense themselves provide such testing place at some point on the south side of the Great Eastern Railway to be mutually agreed on between the Company and the said Billericay Rural District Council.

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(B) If any difference shall arise between the Company and the said councils or either of them as to the position or construction of the respective testing places such difference shall be settled by an arbitrator to be appointed by the Board of Trade.

(c) The Company's servants shall at all times have free access to such testing places.

(D) Section 31 (Representation of undertakers) section 32 (Mode of testing) as modified by this Act and section 33 (Report of gas examiner) of the Gasworks Clauses Act 1871 shall apply to the testing places provided in pursuance of this subsection but such testing places shall not be prescribed testing places for the purposes of section 28 of that Act and shall be maintained and kept in good order and condition by the respective district councils to the reasonable satisfaction of the Company.

63.—(1) The prescribed burner shall be Sugg's London sixteen candle argand burner number one and in making the tests shall be so used that the gas shall be burnt at such a rate as shall give a light equal to sixteen candles.

(2) Provided that on the application of the Company the Board of Trade may approve any other burner and the burner for the time being approved by the said Board in pursuance of this subsection shall be the prescribed burner in lieu of the burner named in subsection (1) of this section.

64. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

As to construction and placing of pipes &c. between mains and meters.

(1) The Company may specify the size and material of the pipes with the fittings thereof (so far as such pipes or fittings are intended to be covered over) which are to be laid by the consumer on his premises either in the first instance or on the occasion of any renewal:

(2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:

(3) The specification shall be published twice in some newspaper circulating within the limits of this Act and a copy thereof shall be kept exhibited in the office of the Company:

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- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:
- (6) Any person to whom the Company refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Power to
supply gas
fittings.

65.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove (but shall not manufacture) engines stoves ranges dynamos motors pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

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66. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Company may cease to supply him with gas. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Anti-fluctuators for gas engines.

67. If any person is required by the Company to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is given by way of deposit the Company shall pay interest at the rate of four per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Company to pay interest on money deposited as security.

68.—(1) Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur.

Gas consumers to give notice to Company before removing.

(2) Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company.

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Notice of
discontinu-
ance.

69. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Power to
refuse supply
to persons in
debt for other
premises.

70. If a person requiring a supply of gas for any premises occupies or has occupied other premises at which gas was supplied to him by the Company and has not paid all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Period of
error in
defective
meters.

71.—(1) In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

(2) The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

No penalty
in case of
unavoidable
cause.

72. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company or was of so slight or unimportant a character as not materially to affect the value of the supply. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Company
may contract
for supply in
bulk.

73. The Company may contract with any local authority company or persons beyond the Company's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

74.—(1) When entering into a contract for the supply of gas to the public lamps within the district of a local authority the whole of whose public lamps shall be supplied with gas by the Company the Company shall not be entitled to demand for such gas a higher price than at the time of entering into such contract they shall be charging for the supply of gas to any other local authority or person within the limits of this Act except that the price charged for gas supplied to public lamps beyond a radius of a mile and a half from the existing gasworks of the Company may exceed by threepence the price charged for gas supplied within that radius.

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 Price of gas
 for public
 lighting

(2) Whenever the Company shall tender for the supply of gas to public lamps and for the lighting and maintenance of such lamps they shall specify the price to be charged for the gas to be supplied separately from the price to be charged for the lighting and maintenance of the lamps.

MISCELLANEOUS.

75. The Company may erect and maintain dwelling-houses for persons in their employment upon the lands for the time being belonging or leased to the Company. Provided that nothing contained in this Act shall exempt any dwelling-houses erected under the powers of this section from the building byelaws for the time being of the local authority within whose district such houses are erected.

Dwelling-
 houses for
 persons in
 Company's
 employment.

76. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production utilisation and distribution of gas the production of coke tar pitch asphaltum ammoniacal oil and the products from coal and other substances employed in or resulting from the manufacture of gas or otherwise in relation thereto but not so as to acquire any exclusive right to the working use exercising or putting in practice of any such invention.

Power to
 take licences
 for use of
 patents.

77.—(1) The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day

Copy of Act
 to be regis-
 tered.

A.D. 1905. after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty. Every penalty under this section shall be recoverable summarily.

(2) There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Recovery of
demands
under 100%.

78. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court provided that the demand does not exceed the amount recoverable in that court in a personal action.

Costs of Act.

79. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

GAS LANDS.

Certain lands partly in the parish of Brentwood and partly in the parish of South Weald both in the county of Essex on which the existing works of the limited company are situate containing by admeasurement 2 acres 2 roods 1 perch or thereabouts bounded on the north by the road known as the St. James Road belonging or reputed to belong to Charles Richard Taylor on the east partly by the road known as St. James Road belonging or reputed to belong to the urban district council of Brentwood and partly by land belonging or reputed to belong to John Donaldson Bradley on the south partly by the said road known as St. James Road partly by land belonging or reputed to belong to John Donaldson Bradley partly by land belonging or reputed to belong to the Great Eastern Railway Company and partly by land belonging or reputed to belong to Charles Richard Taylor and on the west by land belonging or reputed to belong to Charles Richard Taylor.

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